

Tentative Rulings for July 15, 2026

Department PS1

To request oral argument, you must notify Judicial Secretary Carol Delfosse-Kidd at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2203638	WHITLEY'S CONSTRUCTION	HEARING RE: MOTION TO COMPEL

Tentative Ruling: “If a party filing a response to a demand for inspection, copying, testing, or sampling . . . thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.” (C.C.P. § 2031.320(a).) There is no meet and confer requirement. (*Id.*)

Additionally, where responses to document requests have been timely provided but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion compelling further responses. (C.C.P. § 2031.310 (a).) In a motion to compel a further response to document requests, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (C.C.P. §2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

The Bottomleys seek an order compelling Whitley’s to either produce text messages responsive to RFP nos. 29-37, 42, and 43, or provide further code-compliant responses stating no such documents exist and why.

RFPs 29-37, 42, and 43, served by Richard Bottomley in November 2023, requested, among other things, text messages, between Whitley’s and various third parties related to the Project. (Montez Decl., Ex. A, nos. 29-37, 42, 43.) In February 2024, Whitley’s served responses to the RFPs, stating it “will produce all non-privileged responsive documents in its possession, custody, and/or control.” (Montez Decl., Ex. B, nos. 29-37, 42, 43.) Although Whitley’s now claims that it was unable to access any text messages related to the Project because Mr. Whitley got a new phone [Opposition, p. 2:14-17], it presents no evidence of this. The undisputed evidence shows that in April 2026, Whitley’s acknowledged that such text messages exist and were in its possession at that time (still on Mr. Whitley’s phone), [Montez Decl., Ex. C, pp. 126:10-127:9], but no such text messages have been produced. The documents requested are relevant to the claims at issue in this lawsuit, and Whitley’s agreed to produce them. Without evidence that no such documents exist in Whitley’s possession, custody, or control, or a verified response stating the same, Whitley’s should produce these documents.

If, as Whitley’s contends, it truly has no responsive documents in its possession, custody, or control, it must provide a verified response that complies with C.C.P. § 2031.230, which states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is

because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(*Ibid.*) This is not the court requiring Whitley's to change a valid discovery response, as Whitley's claims, but rather complying with discovery when documents Whitley's previously verified and confirmed existed in its possession, custody, and control and would be produced are not actually in its possession, custody, or control.

Whitley's argues that it is too late to compel a further response to the RFPs because the responses were provided in 2024. (Opposition, pp. 3:19-21, 5:1-21.) However, C.C.P. § 2031.310(c) provides that notice of any motion to compel a further response must be "given within 45 days of the service of the verified response, or any supplemental verified response." As Whitley's points out, it served supplemental verified responses to the RFPs on April 24, 2026, and again on May 6, 2026. (Decl. of Marty E. Zemming ["Zemming Decl."], Exs. 4 and 5.) This motion was filed on June 18, 2026, 43 days after the May 6, 2026 supplemental responses were provided. Thus, the motion is timely.

Motion to Compel Production of Documents; Alternatively to Compel Further Verified Responses GRANTED.

Plaintiff to provide verified, code-compliant responses to RFPs 29-37, 42 and 43, without objection, within 5 days.

Sanctions awarded in the amount of \$1,010 (\$475/hour 2 hrs + \$60 filing fee)

The court shall sign the proposed order submitted by Defendant/Cross-Complainant Bottomley.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400400	BUXBAUM VS MCFARLAND	MOTION FOR ORDER REQUIRING DEFENDANTS TO PAY EXPENSES OF PROOF

Tentative Ruling: No tentative ruling. Motion is continued to 8.25.26 for the reasons listed below:

If the party responding to request for admission fails to admit the truth of the matter requested, and the requesting party thereafter proves the truth of that matter, the requesting party may move for an order requiring the responding party to pay the costs and fees incurred in proving that matter. (Code Civ. Proc., § 2033.420(a).) On the requesting party's motion, the court is required to ("shall") make this costs and expenses award, unless the responding party prove any of the excuses further enumerated in this section. Costs and expenses cannot be awarded under section 2033.420 if:

- (1) An objection to the request was sustained or a response to it was waived under Section 2033.290.

- (2) The admission sought was of no substantial importance.
- (3) The party failing to make the admission had reasonable ground to believe that party would prevail on the matter.
- (4) There was other good reason for the failure to admit. (Code Civ. Proc., § 2033.420(b)(1)-(4).)

Party seeking to benefit from exceptions listed in statute governing payment of costs of proof for denying a request for admission bears burden to establish the exceptions. (*Spahn v. Richards* (2021) 72 Cal.App.5th 208.)

“[A]n award of costs of proof under section 2033.420 is not a ‘discovery sanction’ or a ‘penalty’ for engaging in ‘misuses of the discovery process’ for the misuse of the discovery process.” (*City of Glendale v. Marcus Cable Assoc., LLC* (2015) 235 Cal.App.4th 344, 359.) “Instead, it is designed to reimburse reasonable expenses incurred by a party in proving the truth of a requested admission where the admission sought was ‘of substantial importance’ [citations] such that trial would have been expedited or shortened if the request had been admitted....” (*Orange County Water Dist. v. The Arnold Eng. Co.* (2018) 31 Cal.App.5th 96, 115, internal quotations omitted.)

In this action, Plaintiff sought disgorgement of money paid to McFarland Defendants for performing contractor work which required a valid contractor’s license in violation of the applicable provisions of the Contractor’s State Licensing Law (“CSLL”, Bus. & Prof. Code, § 7010 et seq.). The strict forfeiture under the disgorgement provision of section 7031, subdivision (b), allows the hirer to bring a disgorgement claim “to recover all compensation paid to the unlicensed contractor for performance of any act or contract.” (Bus. & Prof. Code, § 7031(b), italics added.) Here, it is undisputed that Plaintiff’s RFA directly related to a controverted issue presented at trial. That is, whether McFarland Defendants performed work at the property for which a valid contractor’s licenses was required but did not in fact hold the required licenses. Undeniably, Defendants answered the RFAs with denials. Plaintiff demonstrates in the motion that he presented substantive evidence at trial, including the expert testimonies from former CSLB investigator, Robert Lucas, and has prevailed on this issue. Therefore, an order requiring Defendants to pay the cost of proof is mandatory.

McFarland Defendants have not made a sufficient showing that they reasonably believed they would prevail at trial on such issue. They argue that they reasonably believed that their relationship with Plaintiff, the nature of the services performed, and the degree of Plaintiff’s involvement in the project supported that characterization. However, Defendants’ firmly held beliefs were not reasonable. Other than the contention that they held subject beliefs that they were acting merely as a consultant, they present no evidence to support the claim that they reasonably entertained good faith belief that they would prevail on the issue at trial, which requires more than a hope or a roll of the dice.” (*Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 532.) “[C]ourts are more willing to credit a party’s reasonable belief that it would prevail based on expert opinion evidence,” but McFarland Defendants point to no such evidence of any efforts made to substantiate their belief with credible source. (*Orange County Water Dist. v. The Arnold Engineering Co.* (2018) 31 Cal.App.5th 96, 118, 120-121.)

However, Plaintiff has not presented competent evidence to demonstrate he is entitled to the amount he claims were incurred in proving the matters McFarland refused to admit. Plaintiff is seeking a total of \$152,815 representing 235.1 hours in attorney’s fees billed by his attorney at the hourly rate of \$650. Plaintiff is seeking an additional

\$12,545 representing an additional 19.3 hours spent on drafting the instant motion as well as for anticipated fees for preparation and appearance on this matter. In support of the demanded fee award, Plaintiff submits the declaration of his counsel, Kenneth G. Ruttenberg, which contains no itemized billing records. McFarland Defendants oppose the reasonableness of the number of hours billed by Plaintiff's counsel as excessive and contends that Plaintiff's demand is unsubstantiated as to the time allocated towards proving the matters as to each Defendant. It is true that "[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) Nevertheless, as the court in *Martino* noted, " 'In many cases the trial court will be aware of the nature and extent of the attorney's services from its observation of the trial proceedings and the pretrial and discovery proceedings reflected in the file....' " but "in the absence of such crucial information as the number of hours worked, billing rates, types of issues dealt with and appearances made on the client's behalf, the trial court is placed in the position of simply guessing at the actual value of the attorney's services" and such "practice is unacceptable and cannot be the basis for an award of fees." (*Ibid.*)

Therefore, even if Plaintiff has shown that he is entitled to award of cost of proof, he has failed to present competent evidence in support of the reasonableness in the amount requested which is being challenged by McFarland Defendants. The reasonableness in the lodestar figure is within the sound discretion of the Court. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) There are a number of factors that a judge may consider in determining that a reduction in fees is warranted. (*Ibid.*) "In evaluating whether the attorney fee request is reasonable, the trial court should consider ' " 'whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.' " ' [Citation.]" (*Id.* at 38.) " 'A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.' " [Citation.]" (*Ibid.*) Evidence is insufficient for the court to determine whether any of these factors are present in this matter. Therefore, a supplemental declaration along with the appropriate time record shall be provided in order for the court to determine the reasonableness of the fees requested.

Motion for Order to Pay Expenses of Proof continued to 8.25.26.

Plaintiff to submit updated declaration by 8.03.26.

Defendant to submit an opposition by 8.12.26.

Plaintiff to submit a reply by 8.18.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2405375	PELAYO VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES BY CLEMENTE PELAYO

Tentative Ruling:

No opposition filed.

Plaintiff's Motion for Attorney's Fees, Costs and Expenses GRANTED.

Plaintiff awarded \$24,210 in costs + \$637.18 in costs for a total of \$24,847.18.

No award for anticipated time for completion of this motion as no opposition was filed.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509063	VEASEY VS SRACSO	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Each protective order statute requires that the motion be "accompanied by a meet and confer declaration under Section 2016.040." (CCP §§ 2030.090(a); 2031.060(a); 2033.080(a).) Section 2016.040, in turn, requires that the declaration state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (CCP § 2016.040(a).)

At the time the motion was filed, Defendants had failed to satisfy their meet and confer requirement. Defendants' counsel submitted a declaration which reflected only a single written communication, with no effort to follow up. The court's June 8, 2026 order found this meet and confer effort insufficient and continued the hearing to allow the parties to conduct a meaningful meet and confer.

Following the court's order, the parties conducted a telephone meet and confer on June 25, 2026. However, the supplemental declaration filed by Defendants' counsel does not comply with the Court's June 8, 2026, order. It states only that counsel met by telephone, that Plaintiff would not change position, and that counsel would report the results to the court. (Horwitz Decl. 2:4–8.) The declaration does not identify the specific discovery requests discussed, the issues remaining in dispute, or the parties' respective positions on each issue.

The court's June 8, 2026 order required moving party, after meeting and conferring, to vacate the hearing, file a joint declaration identifying the specific outstanding disputes and the parties' respective positions, or file a sworn declaration if Plaintiff refused to respond or cooperate. (Court's Minute Order dated June 8, 2026.)

The supplemental declaration therefore does not comply with the court's specific directive. Without identification of the specific disputed discovery requests and the parties' positions on each, the court cannot evaluate whether further informal resolution is possible or craft targeted relief.

Improper Legal Authority:

Even if the meet and confer were adequate, the motion would still fail because Defendants cite a nonexistent statute and omit the statute governing RFPs. In their motion, Defendants invoke only CCP §§ 2030.090 or 2033.090. This is defective.

First, there is no section 2033.090. The Civil Discovery Act's provisions governing RFAs run from section 2033.010 through section 2033.080, and then resume at section 2033.210 *et seq.* for response and motion procedures. The protective-order vehicle for RFAs is section 2033.080 and the motion to compel further responses vehicle is section 2033.290. Defendants have therefore not invoked any valid statutory basis for protective-order relief as to the RFAs.

Second, Defendants do not cite section 2031.060, which is the exclusive protective-order vehicle for RFPs. (CCP § 2031.060(a).) "A basic principle of motion practice is that the moving party must specify for the court and the opposing party the grounds upon which that party seeks relief," and "the trial court may consider only the grounds stated in the notice of motion." (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125; *see also* CCP § 1010; CRC Rule 3.1110(a).) An omission may be overlooked only if the supporting papers make the grounds clear. (*Luri, supra*, 107 Cal.App.4th at 1125.) Here, nothing in the notice or memorandum invokes section 2031.060 or identifies any statutory basis for protective-order relief as to the RFPs propounded to each of the three Defendants.

Good Cause:

The court, for "good cause" shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (CCP §§ 2030.090(b); 2031.060(b); 2033.080(b).) These sections condition relief on a showing of "good cause." Section 2017.020(a) likewise allows the court to limit discovery "if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (CCP § 2017.020(a).) This requires the court to weigh burden against likely benefit. The court cannot perform that weighing without request-specific evidence.

Here, Defendants have failed to make the required showing. The Horwitz Declaration recites that "Plaintiff's discovery is, unduly burdensome, intrusive, and not proportional to the need of this case" and that "[t]he discovery requests, consist of (204) two hundred four pages." (Horwitz Decl. 3:15–18.) However, the declaration does not quantify the time, cost, or other burden imposed by any specific interrogatory, RFA, or RFP. Nor does it identify any individual request to be limited, stricken, or modified. Aggregate page count, standing alone, does not constitute "good cause." Without a request-specific evidentiary showing, the court has no basis on which to fashion any order "justice requires." The supplemental declaration filed June 25, 2026, likewise, provides no request-specific analysis or quantification of burden.

Request for Sanctions:

Defendants' request for sanctions is denied. Each cited protective-order statute provides that "the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP §§ 2030.090(d);

2031.060(h); 2033.080(d).) Because Defendants are the unsuccessful moving party, they are not entitled to sanctions.

Moreover, the court expressly advised the parties in its June 8, 2026 order that failure to engage in a good faith meet and confer process or failure to file a joint declaration as ordered would result in sanctions under CCP § 177.5. While Defendants' counsel did conduct a telephone conference and filed a declaration reporting that conference, the declaration fails to comply with the court's specific directives to identify the outstanding disputes and the parties' positions on each issue.

Motion for Protective Order DENIED.

Request for Sanctions DENIED.

Case Management Conference continued to 11.19.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling:

Motion to Strike is MOOT based on the court's ruling on the demurrer to the First Amended Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	DEMURRER ON 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions

or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st cause of action for sexual battery and 2nd cause of action for gender violence:

In the 1st cause of action, a plaintiff must state facts that (1) the defendant intended to cause a harmful or offensive contact with the plaintiff's sexual organ and sexually offensive contact resulted, either directly or indirectly, OR the defendant intended to cause a harmful or offensive contact with plaintiff by use of defendant's sexual organ and sexually offensive contact resulted, OR the defendant caused an imminent fear of a harmful or offensive contact with plaintiff's sexual organ or with plaintiff by use of defendant's sexual organ, and a sexually offensive contact resulted, either directly or indirectly, OR defendant caused contact between a sexual organ from which a condom had been removed and plaintiff's sexual organ, OR defendant caused contact between a sexual organ and plaintiff's sexual organ from which defendant had removed a condom. (CACI 1306.)

In the 2nd cause of action, for gender violence under Civil Code § 52.4, the elements are: (1) one or more acts that would constitute a criminal offense under state law that has an element of use, attempted use, or threatened use of physical force against the person or property of another, committed at least in part based on the gender of the victim; OR (2) a physical intrusion or physical invasion of a sexual nature under coercive conditions. (Cal. Civ. Code § 52.4.)

Respondeat Superior:

Plaintiff claims that there are sufficient facts to support liability for sexual battery (and gender violence) under the theory of respondeat superior. In the motion, Defendant noted that respondeat superior applies when facts show that the actor was an employee or agent and that the agent was acting within the scope of employment or agency when the harm occurred. (See CACI 3701.) Defendant contends that Plaintiff failed to state facts which showed either (1) that the sexual battery / gender violence occurred at the direction of Defendant, or (2) that the sexual battery / gender violence occurred within the scope of the employment / agency relationship. The FAC states that the sexual battery and gender violence was "done for the purpose of sexual arousal, sexual gratification, and/or sexual abuse." (FAC, ¶58.) Further, it is alleged that the conduct was "sexually motivated." (FAC, ¶ 68.) It goes on to conclude that Defendant is liable under the doctrine of respondeat superior. Defendant contends that these statements fail to show an action within the scope of employment.

In the Opposition, Plaintiff contends that there are sufficient facts to support that the incident did occur within the scope under the enterprise-risk analysis found in the *Farmers* case which discussed the employee's conduct in the context of risks inherent in the business or enterprise of the principal. (Plaintiff's Opposition 4: 16-19; see also *Farmers Ins. Group v. Cty of Santa Clara* (1995) 11 Cal.4th 992.) Plaintiff appears to claim that as the alleged assault took place during a massage appointment at a spa, the assault

must be within the scope of employment. This, however, is an incomplete analysis of the standard applicable to Plaintiff's claims and an incorrect statement of the applicable law.

In *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, the court addressed vicarious liability of a hospital for sexual battery alleged to have occurred when an ultrasound technician was performing an obstetric ultrasound. (Id. at 291.) In the analysis of the summary judgment appeal, the Cal. Supreme Court considered the history of cases evaluating vicarious liability since the departure from the traditional rule that the scope of employment only covers acts motivated by a desire to serve the employer's interests. (Id. at 297-302.) After discussing many cases, including *Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1003-1005 cited by Plaintiff, the court concluded that " ... a sexual tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work related events or conditions The technician's decision to engage in conscious exploitation of the patient did not arise out of the performance of the examination, although the circumstances of the examination made it possible. 'If ... the assault was not motivated or triggered off by anything in the employment activity but was the result of only propinquity and lust, there should be no liability.'" (Id. at 301, quoting *Lyon v. Carey* (1976) 533 F.2d 649, 655.)

Here, the FAC does not state facts to show that the alleged assault was motivated by the employment or had otherwise arisen out of the performance of the massage, and, in fact, notes that the motivation was sexual assault, sexual gratification, or a desire to sexually abuse Plaintiff. Accordingly, the FAC fails to state facts that sexual battery or gender violence were within the scope of employment.

Ratification:

In the Opposition, Plaintiff contends that there are sufficient facts to show that Defendant ratified the conduct of Morales. Plaintiff correctly notes in her Opposition that a ratification confers liability as a result of conduct by the principal which occurs subsequent to the alleged act. (Plaintiffs Opposition 6:23-7 :4.) Further, as indicated in the moving papers, a ratification is unequivocal and must be made with a full knowledge of all material facts involved in the authorization before the ratification – which can only be made in the same manner to convey original authority to act – can be satisfied. (See *Earle v. Lambert* (1962) 205 Cal.App.2d 452, 457; *Bate v. Marsteller* (1959) 175 Cal.App.2d 573, 582; see also Civil Code § 2310.)

Here, Plaintiff concludes that Defendant has knowledge of prior incidents involving Morales prior to the alleged assault. This cannot serve as ratification of the alleged assault as the affirmative act alleged - knowledge of prior incidents - occurred prior to the alleged incident. Next, Plaintiff claims that she was discouraged from cancelling her membership, offered to be transferred to a different location, downplayed the allegations, suggested the conduct was a matter of technique, failed to take immediate protective action, and affirmatively communicated that the therapist would continue treating other customers. (FAC, ¶ 49.) Many of these allegations are conclusions and not facts and, therefore, fail to serve as the basis for the claim of liability under ratification. Further, the factual statements such as the allegation that Plaintiff was discouraged from cancelling her membership fail to show ratification by Defendant of sexual battery.

Further there are insufficient facts to show sufficient knowledge of the material facts of the unauthorized act or the authority of the on-duty manager to ratify the alleged battery. Notably, the FAC also makes claims that a Defendant-employee advised the

Plaintiff that the alleged behavior was inappropriate, that Defendant-employees provided statements to the investigating police officers, and that other individuals identified as managers provided updates to Plaintiff including that the therapist had been located and that her requested cancellation was processed.

3rd cause of action for intentional infliction of emotional distress:

In order to establish a claim for Intentional Infliction of Emotional Distress, the Plaintiff must establish facts that (1) INDEMP's conduct was outrageous; (2) INDEMP intended to cause the Plaintiff emotional distress OR acted with reckless disregard of the probability that Plaintiff would suffer emotional distress knowing that Plaintiff was present when the conduct occurred; (3) Plaintiff suffered severe emotional distress; and (4) INDEMP's conduct was a substantial factor in causing the Plaintiffs severe emotional distress. (See CACI 1600.)

To be deemed "outrageous" conduct must exceed all bounds of that usually tolerated in a civilized community." (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal. 4th 965.) The conduct must also be directed at Plaintiff. (*Christensen v. Sup Ct.* (1991) 54 Cal. 3d. 868.) Further, it must be intended to inflict injury or engaged in with the realization that injury will result. (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050-51.)

Plaintiff contends that Plaintiff, in her Opposition, states that the sexual assault, which admittedly was not carried out by Defendant, is sufficiently outrageous conduct. With respect to Defendant, Plaintiff concludes that the outrageous conduct was operating a massage business, adopting policies from Massage Envy, minimizing Plaintiff's experience, suggesting Morales "may just massage that way", informing Plaintiff that Morales would continue performing massages, and failing to take immediate protective action. (Plaintiff's Opposition 8:24-9:3.)

Plaintiff's first claim - that Defendant operated a massage business - cannot be deemed outrageous and the adoption of policies claim is conclusory and, therefore, these cannot serve as the basis for a claim of outrageous conduct. Next are the alleged statements by an unidentified manager that Morales massaged that way and that he would continue performing massages. The law does not permit liability for intentional infliction of emotional distress involving "insults, indignities, threats, annoyances, petty oppressions, or other trivialities" (See *Yurick v. Sup. Ct.* (1989) 209 Cal.App.3d 1116, telling an employee that she was senile and a lair did not amount to outrageous conduct.) Here, the act of making the above statements is not outrageous under the applicable law.

Also, failing to take immediate corrective action is a conclusion. This statement lacks specific facts as to what action was done to Plaintiff that caused her emotional distress as the FAC alleges that Defendant employees took a report, expressed concern, informed Plaintiff that the alleged conduct was inappropriate, voluntarily submitted to interviews with police officers, contacted Plaintiff after the incident to complete her requested cancellation and let her know that the therapist was located by the police. Further, if Plaintiff is claiming an omission as the basis for the intentional infliction of emotional distress, then there must be a showing of a duty to act by Defendant that it failed to meet.

Finally, Plaintiff contends that Defendant has misstated the standard relating to the element of intent. In the motion, Defendant points out that the actor must have acted with intent to cause emotional distress or with reckless disregard of the probability that the act would cause emotional distress, knowing that the Plaintiff was present when the conduct occurred. (CACI 1600.) Defendant correctly noted that the conduct at issue in a claim for

IIED must be directed at the complaining party. (*Christensen v. Sup. Ct.* (1991) 54 Cal.3d 868.) Plaintiff contends that the factual allegations which support an inference of reckless disregard are that “Defendant knowingly continued business practices that exposed customers to a known risk of sexual assault and therefore minimized Plaintiff’s report.” (Opposition, 9:15-17.) These allegations do not meet the standard for intent required or are otherwise not conduct directed at the Plaintiff.

Demurrer as to 1st, 2nd and 3rd Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 15 days.

Case Management Conference rescheduled from 7.28.26 to 9.29.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2600719	MUNOZ MACIAS VS ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION	MOTION TO COMPEL ARBITRATION BY FRANCISCO DE LA CRUZ, JOHNNY MENDEZ, ARMANDO ALVAREZ, JAVIER ROSALES

Tentative Ruling:

Motion to Compel Arbitration GRANTED.

Case Management Conference set for 8.17.26 is vacated.

Status hearing re arbitration scheduled for 1.14.27. Parties to submit a declaration 10 days prior to the status hearing addressing arbitration status.